

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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ROOSEVELT PORTER,

Plaintiff,

AMENDED COMPLAINT

-against-

06 Civ. 3464 (JSR)

THE CITY OF NEW YORK, DET. RONNIE KING, LT.
MARK DIPIERRO, DET. JOSE RIVERA, DET. EFREM
DESHAZO, DET. MICHAEL CARLO, DET. LUIS
FERNANDEZ, DET. CHRIS VERDEJO, and P.O.s JOHN
and JANE DOE #1-10, individually and in their official
capacities, (the names John and Jane Doe being fictitious,
as the true names are presently unknown),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff ROOSEVELT PORTER, by his attorney, ROSE M. WEBER, complaining of the
defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff also asserts supplemental state law tort claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Southern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff ROOSEVELT PORTER is an African-American male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

7. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant THE CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

9. That at all times hereinafter mentioned, the individually named defendants DET. RONNIE KING, LT. MARK DIPIERRO, DET. JOSE RIVERA, DET. EFREM DESHAZO, DET. MICHAEL CARLO, DET. LUIS FERNANDEZ, DET. CHRIS VERDEJO, and P.O.s JOHN and JANE DOE #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules,

regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

13. On November 19, 2005, at approximately 6:30 p.m., plaintiff ROOSEVELT PORTER was lawfully present at the intersection of Eighth Avenue and W. 112th Street, in the County, City and State of New York.

14. At aforesaid time and place, plaintiff ROOSEVELT PORTER was suddenly accosted by members of the New York City Police Department.

15. Defendants unzipped plaintiff ROOSEVELT PORTER's pants and shoved his pants and underwear down below his knees.

16. Defendants touched plaintiff ROOSEVELT PORTER's scrotum and anus.

17. Defendants tightly handcuffed plaintiff ROOSEVELT PORTER and placed him under arrest on drug charges, despite defendants' knowledge that they lacked probable cause to do so.

18. As a result of being handcuffed too tightly, plaintiff ROOSEVELT PORTER sustained injuries to his wrists.

19. Defendants repeatedly called plaintiff ROOSEVELT PORTER a "nigger".

20. Plaintiff ROOSEVELT PORTER was then transported to the 25th Precinct of the New York City Police Department, in Manhattan, New York.

21. While at the 25th Precinct, plaintiff ROOSEVELT PORTER was again subjected to an unlawful strip search.

22. Plaintiff ROOSEVELT PORTER was then transported to Manhattan Central Booking.

23. Plaintiff ROOSEVELT PORTER was held and detained in police custody for approximately twenty-four hours.

24. Defendants initiated criminal proceedings against plaintiff ROOSEVELT PORTER despite defendants' knowledge that they lacked probable cause to do so.

25. During the period between November 19, 2005 and February 21, 2006, plaintiff ROOSEVELT PORTER was required to make several court appearances to defend himself in the criminal proceedings that defendants had initiated against him.

26. On or about February 21, 2006, all charges against plaintiff ROOSEVELT PORTER were dismissed.

27. As a result of the foregoing, plaintiff ROOSEVELT PORTER sustained, *inter alia*, physical injuries, emotional distress, embarrassment, and humiliation, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "27" with the same force and effect as if fully set forth herein.

29. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

30. All of the aforementioned acts deprived plaintiff ROOSEVELT PORTER of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth,

Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

32. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

33. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “33” with the same force and effect as if fully set forth herein.

35. As a result of the aforesaid conduct by defendants, plaintiff ROOSEVELT PORTER was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

36. As a result of the foregoing, plaintiff ROOSEVELT PORTER’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “36” with the same force and effect as if fully set forth herein.

38. Defendants strip-searched plaintiff ROOSEVELT PORTER in the absence of any individualized reasonable suspicion that plaintiff was concealing weapons or contraband.

39. As a result of the foregoing, plaintiff ROOSEVELT PORTER was subjected to illegal and improper strip searches.

40. The foregoing unlawful strip searches violated plaintiff ROOSEVELT PORTER’s constitutional right to privacy, as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “40” with the same force and effect as if fully set forth herein.

42. Defendants misrepresented and falsified evidence before the District Attorney.

43. Defendants did not make a complete and full statement of facts to the District Attorney.

44. Defendants withheld exculpatory evidence from the District Attorney.

45. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff ROOSEVELT PORTER.

46. Defendants lacked probable cause to initiate criminal proceedings against plaintiff ROOSEVELT PORTER.

47. Defendants acted with malice in initiating criminal proceedings against plaintiff ROOSEVELT PORTER.

48. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff ROOSEVELT PORTER.

49. Defendants lacked probable cause to continue criminal proceedings against plaintiff ROOSEVELT PORTER.

50. Defendants acted with malice in continuing criminal proceedings against plaintiff ROOSEVELT PORTER.

51. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceeding.

52. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff ROOSEVELT PORTER's favor on or about February 21, 2006, when all charges against him were dismissed.

FIFTH CLAIM FOR RELIEF
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

54. Defendants issued legal process to place plaintiff ROOSEVELT PORTER under arrest.

55. Defendants arrested plaintiff ROOSEVELT PORTER in order to obtain a collateral objective outside the legitimate ends of the legal process.

56. Defendants acted with intent to do harm to plaintiff ROOSEVELT PORTER without excuse or justification.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERVENE

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “56” with the same force and effect as if fully set forth herein.

58. Each and every individual defendant had an affirmative duty to intervene on plaintiff ROOSEVELT PORTER’s behalf to prevent the violation of his constitutional rights.

59. The individual defendants failed to intervene on plaintiff ROOSEVELT PORTER’s behalf to prevent the violation of his constitutional rights despite having had a realistic opportunity to do so.

60. As a result of the aforementioned conduct of the individual defendants, plaintiff ROOSEVELT PORTER’s constitutional rights were violated and he was subjected to excessive, force, unlawful strip searches, false arrest, and malicious prosecution.

SEVENTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “60” with the same force and effect as if fully set forth herein.

62. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff ROOSEVELT PORTER’s constitutional rights.

63. As a result of the aforementioned conduct of defendants, plaintiff ROOSEVELT PORTER was subjected to excessive force and sustained physical injuries.

EIGHTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “63” with the same force and effect as if fully set forth herein.

65. Defendants arrested and incarcerated plaintiff ROOSEVELT PORTER in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

66. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

67. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

68. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a) wrongfully arresting minority individuals on the pretext that they were involved in drug transactions;
- b) strip-searching prisoners in the absence of any individualized reasonable suspicion; and
- c) arresting innocent persons in order to meet "productivity goals" (i.e., arrest quotas).

69. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- **Corey Avent v. City of New York**, United States District Court, Eastern District of New York, 04 CV 2451;
- **Reginald McMillan v. City of New York**, United States District Court, Eastern District of New York, 04 CV 3990;

- **Michael A. Smith v. City of New York**, United States District Court, Eastern District of New York, 04 CV 1045;
- **Benjamin Taylor v. City of New York**, United States District Court, Eastern District of New York, 01 CV 5750;
- **Heyward Dotson v. City of New York**, United States District Court, Southern District of New York, 03 Civ. 2136;
- **Theodore Richardson v. City of New York**, United States District Court, Eastern District of New York, 02 CV 3651.

70. The existence of the aforesaid unconstitutional customs and policies may further be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that commanders are permitted to set “productivity goals.”

71. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff ROOSEVELT PORTER.

72. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff ROOSEVELT PORTER as alleged herein.

73. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff ROOSEVELT PORTER as alleged herein.

74. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff ROOSEVELT PORTER was falsely arrested and maliciously prosecuted.

75. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff ROOSEVELT PORTER.

76. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff ROOSEVELT PORTER's constitutional rights.

77. All of the foregoing acts by defendants deprived plaintiff ROOSEVELT PORTER of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have excessive force imposed upon him;
- D. To be free from unlawful search;
- E. To be free from unwarranted and malicious criminal prosecution;
- F. To be free from malicious abuse of process;
- G. Not to have cruel and unusual punishment imposed upon him; and
- H. To receive equal protection under the law.

78. As a result of the foregoing, plaintiff ROOSEVELT PORTER is entitled to compensatory damages in the sum of three million dollars (\$3,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of three million dollars (\$3,000,000.00).

PENDANT STATE CLAIMS

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "78" with the same force and effect as if fully set forth herein.

80. On or about January 26, 2006, and within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the City of New York, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50-e.

81. The City of New York has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

82. On or about March 13, 2006, and within ninety (90) days after the claim for malicious prosecution herein accrued, plaintiff duly served upon, presented to and filed with the City of New York, an Amended Notice of Claim setting forth all facts and information required under the General Municipal Law § 50-e.

83. The City of New York has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

84. The City of New York failed to schedule a hearing pursuant to General Municipal Law § 50-h and such hearing is accordingly deemed waived.

85. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

86. Plaintiff has complied with all conditions precedent to maintaining the instant action.

87. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST

88. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “87” with the same force and effect as if fully set forth herein.

89. Defendant police officers arrested plaintiff ROOSEVELT PORTER in the absence of

probable cause and without a warrant.

90. As a result of the aforesaid conduct by defendants, plaintiff ROOSEVELT PORTER was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

91. The aforesaid actions by the defendants constituted a deprivation of plaintiff ROOSEVELT PORTER's rights.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE IMPRISONMENT

92. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "91" with the same force and effect as if fully set forth herein.

93. As a result of the foregoing, plaintiff ROOSEVELT PORTER was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

94. Plaintiff ROOSEVELT PORTER was conscious of said confinement and did not consent to same.

95. The confinement of plaintiff ROOSEVELT PORTER was without probable cause and was not otherwise privileged.

96. As a result of the aforementioned conduct, plaintiff ROOSEVELT PORTER has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

97. Plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs numbered “1” through “96” with the same force and effect as if fully set forth herein.

98. Defendants’ aforementioned actions placed plaintiff ROOSEVELT PORTER in apprehension of imminent harmful and offensive bodily contact.

99. As a result of defendants’ conduct, plaintiff ROOSEVELT PORTER has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY**

100. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “99” with the same force and effect as if fully set forth herein.

101. Defendant police officers touched plaintiff ROOSEVELT PORTER in a harmful and offensive manner.

102. Defendant police officers did so without privilege or consent from plaintiff ROOSEVELT PORTER.

103. As a result of defendants’ conduct, plaintiff ROOSEVELT PORTER has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION**

104. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “103” with the same force and effect as if fully set forth herein.

105. On or about November 19, 2005, the defendant City of New York, its agents, servants and employees, and the aforesaid defendant police officers commenced a criminal proceeding against plaintiff ROOSEVELT PORTER, and falsely and maliciously, and without probable cause,

charged plaintiff with crimes.

106. Defendants, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that plaintiff ROOSEVELT PORTER had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of plaintiff.

107. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff ROOSEVELT PORTER.

108. Defendants lacked probable cause to initiate criminal proceedings against plaintiff ROOSEVELT PORTER.

109. Defendants were motivated by actual malice in initiating criminal proceedings against plaintiff ROOSEVELT PORTER.

110. Defendants misrepresented and falsified evidence before the District Attorney.

111. Defendants did not make a complete and full statement of facts to the District Attorney.

112. Defendants withheld exculpatory evidence from the District Attorney.

113. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff ROOSEVELT PORTER.

114. Defendants lacked probable cause to continue criminal proceedings against plaintiff ROOSEVELT PORTER.

115. Defendants were motivated by actual malice in continuing criminal proceedings against plaintiff ROOSEVELT PORTER.

116. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff ROOSEVELT PORTER's favor on February 21, 2006,

when all charges against plaintiff were dismissed.

**SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS ABUSE OF PROCESS**

117. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “116” with the same force and effect as if fully set forth herein.

118. Defendant police officers issued legal process to place plaintiff ROOSEVELT PORTER under arrest.

119. Defendant police officers arrested plaintiff ROOSEVELT PORTER to obtain a collateral objective outside the legitimate ends of the legal process.

120. Defendant police officers acted with intent to do harm to plaintiff ROOSEVELT PORTER, without excuse or justification.

121. As a result of the aforementioned conduct, plaintiff ROOSEVELT PORTER suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

**SEVENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

122. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “121” with the same force and effect as if fully set forth herein.

123. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

124. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

125. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

126. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff ROOSEVELT PORTER.

127. As a result of the aforementioned conduct, plaintiff ROOSEVELT PORTER suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

EIGHTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
UNLAWFUL SEARCH

128. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “127” with the same force and effect as if fully set forth herein.

129. Defendants strip-searched plaintiff ROOSEVELT PORTER in the absence of any individualized reasonable suspicion that plaintiff was concealing weapons or contraband

130. As a result of these unlawful strip searches, plaintiff ROOSEVELT PORTER’s right to privacy was violated and he sustained emotional injuries.

NINTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING AND RETENTION

131. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “130” with the same force and effect as if fully set forth herein.

132. Upon information and belief, defendant City of New York failed to use reasonable care in the hiring and retention of the aforesaid defendants who conducted and participated in the arrest of plaintiff ROOSEVELT PORTER.

133. Defendant City of New York knew, or should have known in the exercise of reasonable care, the propensities of the defendants DET. RONNIE KING, LT. MARK DIPIERRO, DET. JOSE RIVERA, DET. EFREM DESHAZO, DET. MICHAEL CARLO, DET. LUIS FERNANDEZ, DET. CHRIS VERDEJO, and P.O.s JOHN and JANE DOE #1-10 to engage in the

wrongful conduct heretofore alleged in this Complaint.

**NINTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT TRAINING AND SUPERVISION**

134. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “133” with the same force and effect as if fully set forth herein.

135. Upon information and belief the defendant City of New York failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest of plaintiff ROOSEVELT PORTER.

136. As a result of the foregoing, plaintiff ROOSEVELT PORTER is entitled to compensatory damages in the sum of three million dollars (\$3,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of three million dollars (\$3,000,000.00).

WHEREFORE, plaintiff ROOSEVELT PORTER demands judgment in the sum of three million dollars (\$3,000,000.00) in compensatory damages and three million dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney’s fees, costs, and disbursements of this action.

Dated: New York, New York
July 10, 2006

_____/s_____
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